

WING HORN

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License:

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Drug & Alcohol Policy Acknowledgment

This policy applies to **WING HORN** and is established in accordance with the Federal Motor Carrier Safety Administration (FMCSA) regulations contained in 49 CFR Part 40 and 49 CFR Part 382.

Important Notice: This document is provided as a compliance guide. Responsibility for adherence to DOT/FMCSA regulations remains with the driver. Violations, citations, penalties, or enforcement actions are the responsibility of the individual operator.

1. Policy Purpose

The purpose of this policy is to promote public safety, protect driver health, and ensure compliance with FMCSA regulations governing the misuse of alcohol and controlled substances by drivers performing safety-sensitive functions.

2. Covered Drivers

This policy applies to all drivers operating Commercial Motor Vehicles (CMVs) requiring a CDL, including full-time, part-time, temporary, leased drivers, and owner-operators performing work for **WING HORN**.

3. Prohibited Conduct

- Use, possession, or distribution of controlled substances while performing safety-sensitive functions.
- Reporting for duty with an alcohol concentration of 0.04 or greater.
- Use of alcohol within 4 hours prior to safety-sensitive functions.
- Use of alcohol within 8 hours following an accident or until post-accident testing is completed.
- Refusal to submit to required drug or alcohol testing.
- Adulterated or substituted test specimens.

Note: A driver with an alcohol concentration between 0.02 and 0.039 shall not perform safety-sensitive functions for at least 24 hours.

4. Required Testing Types

- Pre-employment
- Post-accident
- Random
- Reasonable suspicion
- Return-to-duty
- Follow-up

All testing will be conducted in compliance with 49 CFR Part 40 using DOT-approved laboratories, collection sites, and Medical Review Officers (MROs).

5. Refusal to Test

A refusal to test is treated the same as a positive test result and includes:

- Failure to appear for testing when directed.
- Failure to remain at the testing site.
- Failure to provide a sufficient specimen without medical justification.
- Failure to cooperate with testing procedures.

- Adulteration or substitution of a specimen.

6. Consequences of Violations

Drivers violating this policy will be immediately removed from safety-sensitive functions and may not return until completing SAP evaluation and required return-to-duty procedures.

- Substance Abuse Professional (SAP) evaluation required.
- Completion of recommended education or treatment.
- Successful return-to-duty test.
- Completion of follow-up testing program.

7. Prescription & Over-the-Counter Medications

Drivers must disclose any medications that may affect their ability to safely operate a CMV. Medication use is only permitted if prescribed by a licensed medical provider confirming it does not impair driving ability.

8. Records & Confidentiality

All drug and alcohol testing records are maintained confidentially in accordance with FMCSA regulations and will only be released with written consent or as required by law.

9. Acknowledgment

By signing below, I confirm that I understand the Drug & Alcohol Policy of **WING HORN** and agree to fully comply with all FMCSA regulations as a condition of employment or performing safety-sensitive functions.

Driver Name: Alea Santana

Driver Signature: _____

Date: _____

Driver Signature:

